

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) The Cross-Complaint fails to plead defamation and false light to the requisite level of specificity and particularity such that the Court is unable to discern whether the alleged defamatory statements concerned protected speech. **The special demurrer for uncertainty is sustained with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

Moving party Pierre Saad is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507277	EH95 LLC VS AYAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

On May 14, 2026, the date this motion was originally set for hearing, Defendants Yusuf Ayan and Artext Wholesale, LLC (“Defendants”) filed a Notice of New Authority iso Motion, citing *Santana v. Studebaker Health Care Center, LLC* (2026) 120 Cal.App.5th 1. On this basis, the Court continued the hearing on the motion to July 2, 2026, to allow the parties to provide briefing on such new authority.

In their supplemental brief, Defendants argue, under *Santana*, the court should resolve the ambiguity created by § 7.2 of the Agreement through contract interpretation, rather than treating it as a lack of mutual assent. It also argues to the extent the Agreement does not provide the location of arbitration or how to select an arbitrator, that can be resolved using C.C.P. § 1281.6, and if the court determines § 7.2 is unconscionable, it should be severed, not used to find the Agreement invalid. In its supplemental opposition, Plaintiff EH95, LLC (“Plaintiff”) argues *Santana* does not undermine the Court’s tentative ruling because the court in *Santana* dealt with inconsistent provisions in multiple documents that created ambiguities on how arbitration should be conducted, but there was a clear intent to arbitrate. Here, on the other hand, the problem is not with how the arbitration will proceed, but a lack of agreement as to under what circumstances arbitration would occur at all.

Defendants are correct that the court in *Santana* held the trial court there erred in finding a lack of mutual assent to an arbitration agreement, rather than using contract

interpretation methods to resolve ambiguities when those ambiguities were created by conflicting terms in various documents. (*Id.* at 12-13.) However, the contract at issue in *Santana* was very different than the arbitration provision in the Agreement here.

In *Santana*, the plaintiff was an employee of a skilled nursing facility who signed five relevant documents when he was hired: a California Mutual Dispute Resolution Agreement, an Alternative Dispute Resolution Policy, an Agreement to Be Bound by Alternative Dispute Resolution Policy, and a Confidentiality Agreement, and an Employee Handbook, some of which contained conflicting provisions about who would conduct the arbitration, how the arbitrator should be selected, and the extent of the PAGA waiver. (*Id.* at 8-9, 13-15.) The court acknowledged, however, that each of the documents showed a clear intent to arbitrate. (*Id.* at 13-15.) Here, on the other hand, the entirety of the arbitration provision in the Agreement states as follows:

Any dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California.

If arbitration is not a viable option, the dispute shall be resolved exclusively in the Riverside County Superior Court.

(Ayan Decl., Ex. A, §§ 7.1-7.2 [emphasis added].)

There is no ambiguity created by conflicting terms, but instead a lack of any information explaining what “viable” means, when arbitration would be considered non-viable, or who gets to make that decision.

As the court provided in *Santana*:

The consent of the parties to a contract must be free, mutual, and communicated by each to the other. (Civ. Code, §§ 1565, 1581.) The absence of mutual consent, i.e., the failure to reach a meeting of the minds on all material points, prevents the formation of a contract, including an agreement to arbitrate. ... Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. ... Although the terms of a contract need not be stated in the minutest detail, it ... must evidence a meeting of the minds upon the essential features of the agreement. ... Whether a term is material or essential depends on its relative importance to the parties and whether its absence would make enforcing the remainder of the contract unfair to either party.

(*Santana, supra*, 120 Cal.App.5th at p. 12 [emphasis added][internal quotations and citations omitted].)

Here, without knowing how to determine if and when arbitration is viable, Plaintiff could not have known what it was agreeing to, and there could be no meeting of the minds as

to under what circumstances arbitration would occur. Because that is the essence of an arbitration agreement, Plaintiff cannot be said to have assented to arbitration. Defendants' other arguments provide no assistance. While they argue ambiguities regarding who is to arbitrate the matter and how the arbitrator would be selected could be resolved by C.C.P. § 1281.6, the issue here is not a matter of ambiguity, but lack of assent. Knowing who and how to conduct arbitration only matters if there is a clear agreement to arbitrate, and there is none here; thus, these issues are irrelevant under the circumstances.

Additionally, severing the offending provision cannot make the arbitration agreement valid. The issue of viability of arbitration is clearly part of the agreement, which is only two sentences. (Ayan Decl., Ex. A, §§ 7.1-7.2.) While a court has discretion to sever unconscionable provisions, "[a]t the outset, a court should ask whether the central purpose of the contract is tainted with illegality. ... If so, the contract cannot be cured, and the court should refuse to enforce it... Even if a contract can be cured, the court should also ask whether the unconscionability should be cured through severance or restriction because the interests of justice would be furthered by such actions." (*Jenkins v. Dermatology Mgmt., LLC* (2024) 107 Cal.App.5th 633, 647-648 [internal quotations and citation omitted].) Here, the issue is not one of unconscionability, but lack of assent, and even if it was, the lack of clarity as when arbitration occurs (i.e., is "viable") taints the entire purpose of the arbitration agreement. Therefore, § 7.2 cannot be severed to make the arbitration provision valid.

The court further incorporates its tentative ruling for May 14, 2026, the date this motion was originally set for hearing, as follows:

In its reply, Defendants argue for the first time that the FAA applies and the issue of whether the arbitration agreement is enforceable should be decided by arbitrator. (Reply, pp. 3:15-4:4, 4:21-5:5.) The general rule of motion practice is that new evidence and/or arguments are not permitted in reply papers. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316; *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."].)

Before granting a petition to compel arbitration, the court must determine whether a valid arbitration agreement exists. (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219; C.C.P. § 1281.2.) Defendants fail to establish that an arbitration agreement exists.

Defendants attach the Agreement that contains a dispute resolution provision stating that "[a]ny dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California." (Decl. of Yusuf Ayan ["Ayan Decl."], Ex. A, § 7.1.) This is sufficient prima facie evidence of an arbitration agreement. While Plaintiff mainly attacks the agreement to arbitrate on an unconscionability basis, some of the arguments he raises (that the agreement fails to identify material terms and fails to

explain when arbitration is “viable”) affect whether or not an agreement to arbitrate even exists.

While there is a strong policy favoring arbitration, “[t]here is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable.” (Toal, supra, 178 Cal.App.4th at 1220; Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563, 569.) Mutual assent is required in every contract. (Esparza v. Sand & Sea, Inc. (2016) 2 Cal.App.5th 781, 787-788.) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understanding.” (Ibid.) “When language in a contract is clear and explicit, that language governs interpretation. ... To the extent there is any ambiguity in this language we construe it against defendants, the drafters of the language.” (Id. at 789.)

Additionally, an arbitration agreement that is illusory is not enforceable. (See Saika v. Gold (1996) 49 Cal.App.4th 1074, 1080.) The entirety of the arbitration provision in the Agreement provides as follows:

Any dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California.

If arbitration is not a viable option, the dispute shall be resolved exclusively in the Riverside County Superior Court.

(Ayan Decl., Ex. A, §§ 7.1-7.2 [emphasis added].)

There is nothing in the Agreement explaining what “viable” means, when arbitration would be considered non-viable, or who gets to make that decision. As Defendants drafted the Agreement, the ambiguity created by this failure is construed against them. (Esparza, supra, 2 Cal.App.5th at 789.)

If a party “does not know what he is signing ... mutual assent is lacking.” (Rosenthal v. Great W. Fin. Sec. Corp. (1996) 14 Cal.4th 394, 415.) Here, without knowing how to determine if and when arbitration is viable, Plaintiff could not have known what he was being agreed to. As a result, he did not assent to arbitration.

Also, the arbitration provision appears illusory since any time Defendants do not want to arbitrate, they could simply claim arbitration was not viable. The odds of a plaintiff successfully claiming arbitration is not viable when viability is not defined anywhere in the agreement are low, making the arbitration provision effectively one-sided.

Given that Plaintiff could not assent to arbitration because he could not understand the terms of the agreement without an explanation of how and when arbitration is “viable,” and that the provision appears illusory, the Court finds that Plaintiff did not agree to arbitrate his claims with Defendants. “Absent a clear agreement to submit disputes to arbitration, courts will not infer that the right to a jury trial has been waived.” (Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563, 569.)

Because there is no agreement to arbitrate, it is unnecessary to address the issue of unconscionability.

The motion is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600425	ALLY BANK VS GHUKASYAN	APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

The hearing is continued to August 13, 2026, at 8:30 a.m., because there is no proof of service of the Summons and Complaint on Defendant.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600687	SHARABY VS TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing is continued to July 30, 2026, at 8:30 a.m. in light of the Notice of Errata re: Plaintiff's Declaration in Support of Motion to Compel Arbitration filed June 26, 2026, due to a missing signature on the previously filed declaration, and Defendant's new evidence in its reply as presented in the Second Declaration of Raymond Kim filed June 25, 2026. Plaintiff may file a sur-reply, not to exceed 10 pages, served and filed no later than July 23, 2026.

Moving party is ordered to give notice.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601598	ALLY CAPITAL CORP VS ALBA	APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

The hearing is continued to August 13, 2026, at 8:30 a.m., because there is no proof of service of the Summons and Complaint on Defendant.